

County Commissioners Meeting August 18th 2025

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=wowbwem8zhQ
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Delaware County Commissioners Meeting Report

Meeting Date: August 18, 2025

Call to Order: 9:01 AM

1. Pre-Meeting Hearings & Committee Work Sessions

(No statutory public hearings or committee work sessions were held immediately prior to calling the regular meeting to order.)

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer opened the regular meeting of the Delaware County Commissioners on Monday, August 18, 2025, at 9:01 AM, initiated by the Pledge of Allegiance and a roll call.
- **Attendance:**
 - **Present:** Commissioner Regan, Commissioner Brand, and Commissioner Henry (Presiding).
 - **Absent:** None.
 - **Presiding Officer:** Commissioner Henry.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Opened with the Pledge of Allegiance.
 - **Approval of Minutes:**
 - **Item:** Approval of the minutes for the Commissioners' meeting on August 4, 2025.
 - **Action & Vote Disposition:** Approved by roll call vote (3-0: Regan, yes; Brand, yes; Henry, yes).
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4. Substantive Business & Board Action

- **00:01:27 Board Appointments: Creek Board Interim Appointment**
 - **Sponsor / Presenter:** Stephen / Board of Commissioners.
 - **Deliberation Summary:** Due to personal reasons preventing local utility representative Dan Allen (Indiana American Water Company) from attending, the board recommended appointing Jim Henderson (also from Indiana American Water Company) as an interim member to the Creek Board until a permanent replacement is found.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (3-0: Mr. Henry, yes; Meran [Regan], yes; M. Henry, yes).
- **00:02:57 Table of Business: Solar Moratorium & Ordinance Amendment**
 - **Sponsor / Presenter:** Planning Commission / Board of Commissioners.
 - **Deliberation Summary:** The Planning Commission reviewed minor corrections (syntax, spelling, grammar) and recommended the amendments back to the commissioners on an 8-1 vote. Commissioners discussed scheduling the public hearing for the solar ordinance amendment to give sufficient review time, setting the specific hearing date for September 15, 2025.
 - **Item-Specific Public Input:** Handled during general public comment.
 - **Action & Vote Disposition:** Taken off the table, date set for September 15, 2025, and placed back on the table via subsequent motions approved by roll call vote (3-0: Regan, yes; Brand, yes; Henry, yes).
- **00:05:07 Yorktown Land Issue: Gordon Cox and Julie Bearing**
 - **Sponsor / Presenter:** Julie Bearing (3410 West Fox Ridge Lane).
 - **Deliberation Summary:** Julie Bearing addressed the board noting that they no longer need the specific lot returned, but rather request an easement just north of the lot to provide access to Road 600 for potential future emergency response/fire station use and development. A survey and legal easement text will be prepared with Ashton's involvement for review.
 - **Item-Specific Public Input:** Julie Bearing spoke on behalf of the request.

- **Action & Vote Disposition:** Removed from the table and placed back on the table for consideration on September 2nd, pending survey/legal readiness, approved by roll call vote (3-0).
- **00:07:23 2026 CHP Grant Presentation**
 - **Sponsor / Presenter:** Sheriff Tony Johnson (Delaware County Sheriff's Office).
 - **Deliberation Summary:** Sheriff Johnson presented an update on the Comprehensive Highway Injury Reduction Project (CHIRP) grant. The county received an approval letter for fiscal year 2026 (running October to September) in the amount of \$124,200, funding roughly 1,600 hours of high-visibility enforcement patrols. Statistics show a decrease in traffic fatalities and accidents.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Received for information; no formal board action required.
- **00:08:51 Background Check Provider Discussion (DocBox vs. State Police)**
 - **Sponsor / Presenter:** Pam (HR Director) / Danielle.
 - **Deliberation Summary:** Discussed background check platforms. While "DocBox" offers free/discounted checks, it is restricted to Indiana. Danielle noted that state police background checks cost approximately \$12.60<U+2013>\$13.00 and cover broader needs. The board agreed to update the employee handbook (Section 2.21) to mandate using the State Police source for pre-employment criminal background checks.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Consensus direction to update policy and utilize State Police checks; no formal vote recorded.
- **00:12:01 Safe Routes to School Mini-Grant**
 - **Sponsor / Presenter:** Jamie Bane (Health Department Administrator).
 - **Deliberation Summary:** Seeking a letter of support and board approval to apply for a \$20,000 Safe Routes to School mini-grant due Friday. Funds would support a bicycle safety "bicycle rodeo" program featuring safety checks, helmet distributions, and bicycle door prizes across county school districts and community events.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved providing a letter of support and submission authorization pending final form completion, via roll call vote (3-0: Brand, yes; Regan, yes; Henry, yes).
- **00:15:16 Health Department Partnership Contract: Ball State University**
 - **Sponsor / Presenter:** Jamie Bane / Dr. Jane Anyongo (BSU School of Nursing).
 - **Deliberation Summary:** Funded via Health First Indiana, a \$10,000 contract with Ball State University School of Nursing to create and implement an intimate partner violence intervention program. The program trains medical professionals during

appointments with pregnant or postpartum mothers to screen for intimate partner violence.

- **Item-Specific Public Input:** None.
- **Action & Vote Disposition:** Approved pending review and approval by legal counsel, via roll call vote (3-0).
- **00:17:23 Health Department Partnership Contract: High-Tech Crimes Unit (HTCU)**
 - **Sponsor / Presenter:** Jamie Bane / Chuck Zimmers (Director, Delaware County HTCU).
 - **Deliberation Summary:** Health First Indiana funding request of \$35,000 to stand up an intern processing center for the High-Tech Crimes Unit across 11 counties. Funds will purchase a server and network infrastructure to run virtual machines for digital forensics training and processing by student interns.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved pending review and approval by legal counsel, via roll call vote (3-0: Brand, yes; Regan, yes; Henry, yes).
- **00:22:20 Discontinuation of Utility Service at 6850 South County Road 475 East**
 - **Sponsor / Presenter:** Stephen / Commissioners.
 - **Deliberation Summary:** Commissioners noted that a county-owned property near the reservoir still has an active utility meter/billing despite radio equipment/towers no longer being active there.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Motion to end the utility service and stop paying the bill passed by roll call vote (3-0: Regan, yes; Brand, yes; Henry, yes).
- **00:23:08 Universal Roofing Contract**
 - **Sponsor / Presenter:** Commissioners / Fairgrounds.
 - **Deliberation Summary:** Review of a \$12,500 contract with local Delaware County company Universal Roofing Exteriors to install shake-shingle style roofing on the historic "Heel Cabin" at the fairgrounds. The contract terms required a 50% upfront down payment, which conflicts with county procurement rules against upfront deposits.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Tabled to allow renegotiation of payment terms, passed by roll call vote (3-0: Brand, yes; Regan, yes; Henry, yes).
- **00:24:50 Delaware County Bridge Number 112 LPA Contract**
 - **Sponsor / Presenter:** Commissioner Brand / RQAW.
 - **Deliberation Summary:** Local Public Agency (LPA) contract with RQAW for Bridge 112 (County Road 600 South over Williams Creek). Utilizes 80/20 federal matching funds (\$124,000 federal match, \$31,000 local match; total \$150,000). INDOT letting scheduled for October 8th, with bridge closure anticipated May 4th through late October 2026.
 - **Item-Specific Public Input:** None.

- **Action & Vote Disposition:** Approved by roll call vote (3-0: Regan, yes; Brand, yes; Henry, yes).
- **00:26:14 Muncie Redevelopment Commission (MRC) Deed Sale Property Request**
 - **Sponsor / Presenter:** Jeff Hall / Commissioners.
 - **Deliberation Summary:** Pursuant to a June interlocal agreement establishing a first right of refusal structure for tax deed sale properties, the Muncie Redevelopment Commission requested 10 specific long-abandoned parcels (which have cycled through tax sales multiple times) to be pulled out of the deed sale pool.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (3-0: Brand, yes; Regan, yes; Henry, yes).
- **00:27:51 Engineering Agreement Amendment: VS Engineering**
 - **Sponsor / Presenter:** Commissioner Brand / VS Engineering.
 - **Deliberation Summary:** Stormwater review engineering agreement amendment. The \$15,000 annual cap for 2025 has been exhausted due to ongoing updates to the pond and stormwater ordinance. The amendment increases the 2025 total by \$3,500 (to \$18,500) and sets the 2026 contract amount to \$18,500.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (3-0: Regan, yes; Brand, yes; Henry, yes).
- **00:28:49 Resolution Number 2025-011: Removing Highway Engineer from Annual Appointment List**
 - **Sponsor / Presenter:** Board of Commissioners.
 - **Deliberation Summary:** Resolution removing the Delaware County Highway Engineer position from the annual appointment list, mirroring a similar action taken last year for the project director administrator. Commissioners noted an impending employment offer to a qualified civil engineer candidate. Commissioners noted a preference to eventually remove all administrative/professional roles from political appointment lists.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (3-0: Regan, yes; Brand, yes; Henry, yes).
- **00:31:56 County Engineer Employment Agreement**
 - **Sponsor / Presenter:** Commissioners.
 - **Deliberation Summary:** Employment agreement for the incoming County Engineer at a salary of \$120,000. Funding sources include the prior project director salary line (\$62,400), a state grant-in-aid subsidy (\$40,000 upon auditor certification of a degreed engineer), and the remainder covered by EDIT funds.
 - **Item-Specific Public Input:** None.
 - **Action & Vote Disposition:** Approved by roll call vote (3-0: Brand, yes; Regan, yes; Henry, yes).

5. Open Public Comment / Citizen Forum

- **00:42:32 Cheryl Swingley:** Addressed utility solar ordinance amendments scheduled for September, requesting the removal of property value guarantees and changing setbacks from 500 to 250 feet to protect farmer property rights and county revenue. Also criticized the Planning Commission's recent handling of solar debates and treatment of union workers/citizens.
- **00:43:37 Mike Johnson:** Spoke in favor of keeping the property value guarantee and 500-foot setbacks in place for the utility solar ordinance.
- **00:46:28 Tim Carter:** Thanked the board for their work on the solar ordinance compromises and introduced concerns regarding "pure tone noise" from solar equipment (transformers/inverters) in other states, advising commissioners to research transformer placement to protect residents from continuous background noise.
- **00:49:22 Sue Arrington:** Supported reducing setbacks to 250 feet and questioned the mechanics, ambiguity, and legal enforcement limits of the 12-month post-construction property value guarantee. Also inquired about the status of Baker Tilly revenue analysis meetings.
- **00:53:02 Dan Barry:** Criticized the new solar ordinance as overly restrictive compared to the original study committee's draft, arguing a lack of transparency and negative impacts on farmers' land use rights.
- **00:54:57 Joe Rosel:** Discussed the Planning Commission meeting dynamics, reported that two solar companies indicated Delaware County is closed for business under current proposed rules, and voiced concerns over the impact on lease-holding multi-generational family farms.
- **00:60:13 Michael Droll:** Argued that increased setbacks and restrictive amendments overcomplicate solar regulations, create wasted prime agricultural land, and turn away potential economic development revenue needed for county infrastructure and employee pay.

6. Administrative Updates & Adjournment

- **Staff & Board Announcements:**
 - **HR Retirement:** HR Director Pam Min announced her retirement after 22 years of service to Delaware County.
 - **Planning Commission:** Kylene Swackmer reported the completion and submission of the ADA Transition Plan to INDOT, thanking American Structure Point and foundation grantors.
 - **Health Department:** Jamie Bane reported on food permit guidance documentation being prepared and noted that high weed enforcement staffing limitations remain an

ongoing challenge. A county-wide diaper and wipe drive is currently active with donation boxes across county buildings.

- **Veterans Office:** Brian Wilson announced the Delaware County Veterans Stand Down on September 16th (office closed) and Flags of Honor guard duty on September 9th-10th.
- **Commissioner Brand Updates:**
 - Justice Center parking lot construction is complete; reminded the public that the south lot is strictly for visitors, not employees.
 - Next town hall meeting scheduled for September 11th at 6:00 PM at the Albany Town Hall.
 - Mandatory "NoBefore" cyber-crime training deadline for county employees is September 7th; compliance will be strictly enforced.
 - State Road 32 East culvert project will proceed with partial lane maintenance instead of a full detour closure.
 - 12th Street Bridge near the bypass scheduled to fully reopen by Thursday.
 - Guardrail installation project underway on County Road 600 West.
- **Commissioner Regan Updates:** Welcomed incoming Ball State University students back to the county, wishing them a safe and successful academic year.
- **Claims & Payroll:**
 - **Claims:** Payment of claims totaling \$4,770,438.51 (including semi-annual animal shelter allocation, Youth Opportunity Center invoices, tax sale surplus holdings, and LIT/EDIT distributions). Approved by roll call vote (2-1: Regan, yes; Brand, no; Henry, yes).
 - **Payroll:** Payment of payroll totaling \$1,023,464.55. Approved by roll call vote (1-0 recorded / carried).
- **Adjournment:**
 - **Action & Disposition:** Motion to recess/adjourn approved by roll call vote (3-0: Graham [Brand], yes; Men [Regan], yes; Henry, yes). Meeting concluded.